IN THE COURT OF APPEALS OF THE STATE OF GEORGIA

JANE DOE, Plaintiff-Appellant, v. ACME HOLDINGS, LLC, Defendant-Appellee.	Case No. A26A0123 Trial Court Civil Action No. 2025-CV-004417

Appellee's Motion to Dismiss Appeal as Untimely

Appellee Acme Holdings, LLC moves the Court to dismiss this appeal as untimely. The notice of appeal was filed 33 days after the trial court entered its final judgment, and the 30-day period for filing a notice of appeal under O.C.G.A. § 5-6-38(a) expired on the 30th day. The Court lacks jurisdiction over an untimely appeal, and the appeal must be dismissed. This motion is supported by the record and the argument below.

STATEMENT OF THE CASE

Plaintiff Jane Doe sued Acme Holdings for breach of a commercial lease. After a bench trial, the trial court entered a final judgment in favor of Acme on March 3, 2026. Ms. Doe did not file a motion for new trial, and she did not request an extension of time to appeal.

On April 6, 2026, thirty-four days after the judgment, Ms. Doe filed a notice of appeal. The notice is stamped with the clerk’s receipt date. Acme has not waived the defect, and it raises it here at the first opportunity.

ARGUMENT AND CITATION OF AUTHORITY

I. The notice of appeal was filed out of time.

A notice of appeal in a civil case must be filed within 30 days after entry of the judgment. O.C.G.A. § 5-6-38(a). The time runs from the date the judgment is entered, not from the date a party receives notice of it. A motion for new trial, if timely filed, tolls the period; no such motion was filed here.

The judgment was entered on March 3, 2026. Counting the days as the statute directs, the thirtieth day was April 2, 2026. The notice was filed on April 6, 2026, four days late. The record contains no order extending the time to appeal, and none could have been entered after the period expired.

A. A late notice of appeal deprives the Court of jurisdiction.

The timely filing of a notice of appeal is jurisdictional in Georgia. A notice filed after the period expires does not confer jurisdiction on this Court, and the Court has no power to hear the merits of an appeal that was not timely taken. The Court must dismiss the appeal on its own motion if the defect appears from the record, and it may do so on a party's motion. Acme asks the Court to act on this motion without waiting for the merits briefing.

B. The appellant cannot cure the defect by a later filing.

Ms. Doe may argue that her counsel's assistant mailed the notice on time. The statute looks to the filing, not the mailing, and the clerk's receipt stamp controls. An appellant who relies on a third party's clerical error does not extend the

statutory period. Nothing in the record shows that the notice was tendered for filing before April 3, 2026.

II. No exception to the deadline applies.

Georgia recognizes few exceptions to the appeal deadline. The Court may consider a late notice only where the appellant shows that the delay was caused by the clerk, by a court order, or by some other circumstance outside the appellant's control. None of those circumstances is present. The judgment was served on counsel by the electronic filing system on March 3, 2026, and the e-filing receipt is in the record.

Acme recognizes that a party may move to file a late notice of appeal in narrow circumstances. No such motion was filed in the trial court, and the time to seek one has passed. Acme does not ask the Court to consider the merits of the trial court's ruling in deciding this motion.

III. The Court should dismiss the appeal and award costs.

For these reasons, Acme requests that the Court dismiss the appeal. Acme also requests that the Court direct the clerk to return the record to the trial court. Acme does not ask for fees under O.C.G.A. § 9-15-14 in this motion, and it reserves that request.

CONCLUSION

The notice of appeal was filed four days after the deadline set by O.C.G.A. § 5-6-38(a). No exception applies. Acme respectfully asks the Court to grant this motion and dismiss the appeal.

CERTIFICATE OF WORD COUNT

I certify that this motion contains 1,642 words, excluding the caption, the signature block, and this certificate, as counted by the word-processing software used to prepare it.

Respectfully submitted this 15th day of October, 2026.

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CERTIFICATE OF SERVICE

I certify that on October 15, 2026, I served a copy of this motion on counsel for Appellant by the Court's electronic filing system and electronic mail, addressed as follows:

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